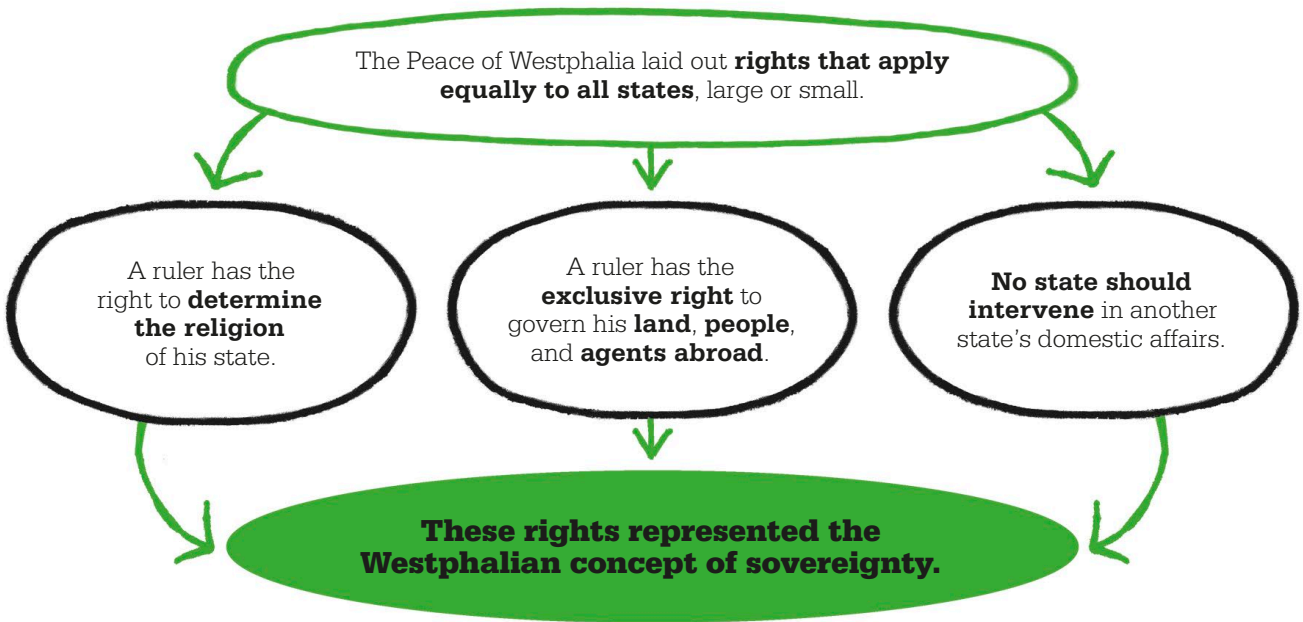


See also: Grotius's *On the Law of War and Peace* 92 ■ Vattel's *The Law of Nations* 108 ■ The US Constitution and Bill of Rights 110–117 ■ The Hague Conventions 174–177 ■ The United Nations and International Court of Justice 212–219



rumbled on. The two conflicts were hugely disruptive to the whole region and, by the mid-17th century, all parties were ready to seek peace.

Negotiating peace

After 194 states took part in lengthy negotiations from 1644 to 1648, two treaties, together known as the Peace of Westphalia, were signed in the cities of Osnabrück and Münster. All states agreed to uphold the 1555 Peace of Augsburg principle of *cuius regio, eius religio* (“whose state, his religion”), whereby a ruler could decide the religion of his own state or principality. The Peace of Westphalia extended this right so that most subjects who did not follow the state religion had the right to practice their own faith.

Crucially, the treaties laid out the concept of exclusive sovereignty of each state over its own lands, people, and agents aboard. They redrew the map of Europe, granting

sovereignty to around 300 German principalities and recognizing the independence of Switzerland from Austria and the Dutch Republic (made up of seven northern Low-Countries provinces) from Spain.

The Westphalian legacy

International law has its roots in the principle of Westphalian sovereignty, which outlines that each state has sovereignty over its own lands and that other states should not interfere in another country's domestic affairs. (Even so, some historians argue that while the principle grew from the Peace of Westphalia, it was not overtly described in the treaties themselves.) The notion that all states, no matter what their size, are equal under international law also stems from the Peace.

The Westphalian concept of sovereignty developed further in the 18th and 19th centuries, becoming

a key tenet of international relations. The modern international system, enshrined in the UN Charter (1945), requires that no state interfere in another's domestic affairs. Recent globalization has seen a decline in sovereignty's status and some now argue for intervention in state affairs to avert humanitarian crises. ■

“
The first attempt
to institutionalize an
international order ... on
a multiplicity of powers ...
Henry Kissinger
American diplomat (1923–)
on the Peace of Westphalia
”